

24STCV25988 24STCV25988

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-06

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Case Number: 24STCV25988 Hearing Date: July 6, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV25988

LADWAN

THOMPSON vs MENS HEALTH FOUNDATION, A CALIFORNIA CORPORATION, et al.

July

6, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION OF LIPELES LAW GROUP, APC TO BE RELIEVED AS COUNSEL-CIVIL.

RULING:

The Court continues the Motion hearing to July 10, 2026, at 8:30 a.m., in Department 311, for a Declaration completed as to confirming the client's address.

ANALYSIS:

By the Motion, filed June 8, 2026, counsel moves to be relieved as attorney of record for Plaintiff LADWAN THOMPSON, by declaring, in the form Declaration, at paragraph 2, that counsel has lost contact with the client.

Here, the form notice, proposed order, and proof of service sufficiently comply with the requirements for a motion to be relieved as counsel. (See Cal. Rules of Court, rule 3.1362.)

Moving counsel's declaration does show cognizable grounds for withdrawal:

A breakdown in the attorney-client relationship (or personality clash). (*Estate of Falco v. Decker* (1987) 188 Cal.App.3d 1004, 1014 (Falco).)

The client by conduct renders it unreasonably difficult for the member to carry out the employment effectively (e.g., noncooperation or noncommunication). (Rules Prof. Conduct, rule 1.16(b)(4). Cf. *Falco*, supra, 188 Cal App.3d at p. 1020 ["We find no abuse of discretion in the trial court's implicit finding rejecting the contention that respondents' lack of cooperation justified appellants' withdrawal."].)

No opposing document is filed in order to show any prejudice caused by attorney withdrawal. (See Rules Prof. Conduct, rule 1.16(d); *Vann v. Shilleh* (1975) 54 Cal.App.3d 192, 197.)

However, the Declaration, at paragraph 3(b)(1)(d), fails to specify how counsel confirmed the client's

last known address.

The Court continues the

Motion for an amended Declaration specifying how Plaintiff's address was confirmed, such that there is an indicator that Plaintiff would receive important mailings.

If the client's address

remains unknown, then Code of Civil Procedure section 1011, subdivision (b) requirements can be satisfied by serving the Court Clerk. (CRC Rules 3.1362(d) and 3.252(a).)

At this time, the Court does

not complete, sign and file the Form Order received-stamped on June 8, 2026.